

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

CARL HEREFORD,

Plaintiff,

-against-

THE CITY OF NEW YORK, New York City Police
Department Detective JOSEPH COHEN, in his
individual capacity, and New York City Police Officers
John and Jane Does 1–5, in their individual capacities,

Defendants.

Index No. _____

SUMMONS

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon Plaintiff's attorney, at his address stated below, an Answer to the attached Complaint.

If this Summons was personally served upon you in the State of New York, the Answer must be served within 20 days after such service of the Summons, excluding the date of service.

If the Summons was not personally delivered to you within the State of New York, the Answer must be served within 30 days after service of the Summons is complete as provided by law.

If you do not serve an Answer to the attached Complaint within the applicable time limitation, a judgment may be entered against you, by Plaintiff, for the relief demanded in the Complaint, without further notice to you.

The action will be heard in the Supreme Court of the State of New York, in and for the County of Kings. This action is brought in Kings County because it is the place in which the claim arose.

Dated: February 13, 2023
New York, New York

Respectfully submitted,

By: _____


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**VERIFIED COMPLAINT AND
DEMAND FOR JURY TRIAL**

Plaintiff Carl Hereford (“Plaintiff”), through his attorney David B. Rankin of Beldock
Levine & Hoffman, LLP, as and for his Complaint, does hereby state and allege:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate Plaintiff’s rights under the Fourth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983, along with claims under the laws of the State of New York.

2. Plaintiff’s rights were violated when officers of the New York City Police Department (“NYPD”) unconstitutionally and without any legal basis seized, detained, arrested, searched, and initiated prosecution against him without probable cause. By reason of Defendants’ actions, Plaintiff was deprived of his constitutional rights.

3. Plaintiff also seeks an award of compensatory and punitive damages and attorneys’ fees.

JURISDICTION AND VENUE

4. Pursuant to New York State General Municipal Law § 50-e, Plaintiff filed a timely Notice of Claim with the New York City Comptroller and the Comptroller designated the claim as number 2022PI005705.

5. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

6. Venue is properly laid in the Supreme Court of the State of New York, County of Kings because Plaintiff resides in Kings County, the incident took place in Kings County, and Defendants regularly and substantially conduct business in Kings County. C.P.L.R. § 503(a)-(b).

7. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

PARTIES

8. Plaintiff was at all times relevant to the action a resident of Kings County in the State of New York.

9. Defendant the City of New York ("City") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

10. NYPD Detective Joseph Cohen is and was at all times relevant herein an officer, employee, and agent of the NYPD.

11. NYPD Officers ("P.O.") John and Jane Does 1-5 are and were at all times relevant herein, officers, employees, and agents of the NYPD.

12. The true names and shield numbers of Defendants P.O. John and Jane Does 1–5 are not currently known to Plaintiff.¹ However, they are employees or agents of the NYPD. Accordingly, they are entitled to representation in the action by the New York City Law Department (“Law Department”) upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff intend to name said officers as Defendants in an amended pleading once the true names and shield numbers of said Defendants become known to Plaintiff and (b) that the Law Department should immediately begin preparing their defense in the action.

13. In this Complaint, John and Jane Does 1–5 and Joseph Cohen are collectively referred to as the “Individual Defendants.”

14. The Individual Defendants are being sued in their individual capacities.

15. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

16. The Individual Defendants’ acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of Plaintiff’s rights.

¹ By identifying said Defendants as “John Does” and Jane Does,” Plaintiff is making no representations as to the gender of said Defendants.

17. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

STATEMENT OF FACTS

18. On July 1, 2020, at approximately 9:50 p.m., Plaintiff, who is Black, was socializing with a group of friends, all of who were Black or Hispanic, in the Red Hook Housing Complex near Columbia Street and Mill Street in Kings County in the City and State of New York.

19. The Individual Defendants drove a police cruiser into the Red Hook Housing Complex and parked it in front of Plaintiff and his group of friends.

20. As Plaintiff walked past the police cruiser, the Individual Defendants got out of the police cruiser and stopped Plaintiff without probable cause or reasonable suspicion that any crime had been committed, was being committed, or was about to be committed.

21. The Individual Defendants grabbed both of Plaintiff's arms, placed them behind his back, handcuffed him, bent him over the rear of their police cruiser, and searched him.

22. The Individual Defendants handcuffed Plaintiff too tightly, injuring his wrists.

23. Plaintiff asked the Individual Defendants to loosen the handcuffs, but they did not immediately do so.

24. Still without probable cause, the Individual Defendants placed Plaintiff under arrest, took him to the 76th Precinct, searched him, and questioned him.

25. The Individual Defendants then took Plaintiff to a holding cell, where they searched him a third time, still without probable cause.

26. After a period of time, the Individual Defendants put Plaintiff back in handcuffs, removed him from the holding cell at the 76th Precinct, put him the back of a police cruiser, and

drove him to the 9th Precinct in the borough of Manhattan, in the County, City, and State of New York.

27. At the 9th Precinct, the Individual Defendants, including Defendant Detective Cohen, placed Plaintiff in a holding cell and questioned him.

28. Detective Cohen ultimately signed a felony complaint against Plaintiff, which contained false statements and false accusations that Detective Cohen knew were false.

29. After a period of time, the Individual Defendants transferred Plaintiff from the 9th Precinct to Central Booking at 100 Center Street in the borough of Manhattan, in the County, City, and State of New York.

30. Plaintiff was detained in Central Booking until the following night, when he was arraigned.

31. At arraignment, the Judge set bail that Plaintiff could not immediately pay, so Plaintiff was sent to the Manhattan Detention Complex and held for approximately one week.

32. The experience of being held at the Manhattan Detention Complex traumatized Plaintiff.

33. Plaintiff is now anxious around police officers, afraid that they can do whatever they want to him at any moment, including send him to jail without cause.

34. While in the Manhattan Detention Complex, Plaintiff contracted a sickness that may have been COVID-19.

35. After being released from the Manhattan Detention Complex, Plaintiff had to return to court several times for hearings related to his case.

36. Every time that Plaintiff appeared in Court, the hearing was adjourned.

37. On November 30, 2021, Plaintiff appeared for yet another hearing in his case. At that hearing, the charges against Plaintiff were dismissed, more than fifteen months after Plaintiff's wrongful arrest.

38. The Individual Defendants' actions were unlawful and violated Plaintiff's constitutional rights and common law rights.

39. As a result of the unlawful arrest, Plaintiff experienced pain, suffering, and mental anguish.

**FIRST CLAIM
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983
*(Against the Individual Defendants)***

40. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

41. In committing the acts and omissions complained of herein, the Individual Defendants acted under color of state law to deprive Plaintiff of certain constitutionally protected rights under the Fourth and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. the right to be free from unreasonable search and seizure;
- b. the right to be free from arrest without probable cause;
- c. the right to be free from false imprisonment, that being wrongful detention without good faith, reasonable suspicion, or legal justification, and of which detention Plaintiff was aware and to which he did not consent;
- d. the right to equal protection, privileges, and immunities under the laws; and
- e. the right to be free from malicious prosecution.

42. In committing the acts and omissions complained of herein, the Individual Defendants breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

43. As a direct and proximate result of the Individual Defendants' deprivation of Plaintiff's constitutional rights, Plaintiff suffered the injuries and damages set forth above.

44. The unlawful conduct of the Individual Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

SECOND CLAIM
LIABILITY OF THE CITY OF NEW YORK FOR CONSTITUTIONAL VIOLATIONS –
42 U.S.C. § 1983
(Against defendant the City of New York)

45. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

46. At all times material to the Complaint, Defendant City had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

47. At all times material to the Complaint, Defendant City failed to properly train, screen, supervise, or discipline its employees and police officers, including the Individual Defendants and failed to inform the Individual Defendant's supervisors of their need to train, screen, supervise or discipline the Individual Defendants.

48. The policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth, and Fourteenth Amendments.

49. As a result of the foregoing, Plaintiff was deprived of liberty, suffered emotional distress, humiliation, costs and expenses, and was otherwise damaged and injured.

THIRD CLAIM
MALICIOUS PROSECUTION

18. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

19. Despite knowing that probable cause did not exist to arrest, initiate, and continue the prosecution against Plaintiff, Defendants intentionally, recklessly, and with malice caused Plaintiff to be arrested, charged, and held in custody.

20. The criminal case against Plaintiff was terminated in his favor when all charges against him were dismissed on or about November 30, 2023.

21. As a direct and proximate result of Defendants' actions, Plaintiff was prosecuted, imprisoned, had to defend against the charges against him through multiple court appearances, and suffered the other grievous and continuing damages and injuries set forth in this Complaint.

FOURTH CLAIM
RESPONDEAT SUPERIOR LIABILITY OF THE CITY OF NEW YORK FOR STATE
LAW VIOLATIONS

50. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

51. The conduct of the Individual Defendants alleged herein, occurred while they were on duty and in uniform, and/or in and during the course and scope of their duties and functions as New York City police officers, and/or while they were acting as agents and employees of defendant The City of New York, clothed with and/or invoking state power and/or authority, and, as a result, Defendant The City of New York is liable to Plaintiff pursuant to the state common law doctrine of respondeat superior.

52. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

FIFTH CLAIM
NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION AND TRAINING

53. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

54. Defendant The City of New York negligently hired, screened, retained, supervised, and trained the Individual Defendants. The acts and conduct of the Individual Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

55. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

JURY DEMAND

56. Plaintiff demands a trial by jury in his action on each and every one of his damages claims.

WHEREFORE, Plaintiff demands judgment against the Defendants individually and jointly and prays for relief as follows:

- a. That Plaintiff be compensated for violations of his constitutional rights, pain, suffering, mental anguish, and humiliation; and
- b. That Plaintiff be awarded punitive damages against the Individual Defendants; and
- c. That Plaintiff be compensated for attorneys' fees and the costs and disbursements of his action; and

- d. For such other further and different relief as to the Court may seem just and proper.

Dated: February 13, 2023
New York, New York

Respectfully submitted,



By: _____
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Attorneys for Plaintiff

ATTORNEY'S VERIFICATION

I, David B. Rankin, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

- 1) I am the attorney of record for Plaintiff.
- 2) I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
- 3) This verification is made by me because Plaintiff does not reside in the County where I maintain my office.

Dated: February 13, 2023
New York, New York

Respectfully submitted,



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